

1 ENGROSSED SENATE
2 BILL NO. 1670

By: Reinhardt of the Senate

3 and

4 Moore of the House

5
6 An Act relating to higher education; amending 70 O.S.
7 2021, Section 3206.3, which relates to research and
8 development at institutions of higher education;
9 directing certain policy established by the Oklahoma
10 State Regents for Higher Education to include certain
11 tiered system of ownership and require certain
12 compensation; adding area of encouragement for
13 certain development; requiring certain policies to be
14 reviewed with certain frequency; updating statutory
15 language; providing an effective date; and declaring
16 an emergency.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY 70 O.S. 2021, Section 3206.3, is
19 amended to read as follows:

20 Section 3206.3. A. The Oklahoma State Regents for Higher
21 Education shall:

22 1. Establish, pursuant to the requirements of this paragraph, a
23 model policy, which to the extent not inconsistent with this section
24 may be adapted by the governing board of regents for each
institution within The Oklahoma State System of Higher Education,
regarding:

- 1 a. the use of facilities, whether consisting of real
2 property, personal property, intangible personal
3 property, or any combination of such properties,
4 within The Oklahoma State System of Higher Education,
5 for the purpose of conducting research, the principal
6 purpose of which is to develop or refine a product,
7 process, or idea in cooperation with a private
8 business entity in order to market the product,
9 process, or idea for profit,
- 10 b. the investment of value available to institutions
11 within The Oklahoma State System of Higher Education,
12 in private business entities or the receipt of royalty
13 income from a private business entity, or both, in
14 conjunction with research and development conducted on
15 the premises of or with the assistance of institutions
16 within The Oklahoma State System of Higher Education,
17 its faculty, staff, or students,
- 18 c. a method to inform the faculty, staff, students, and
19 third parties conducting research on the premises of
20 or with the assistance of the faculty, staff, or
21 students of an institution within The Oklahoma State
22 System of Higher Education of the policies developed
23 pursuant to this paragraph, and
24

d. the extent to which professors and other faculty and students at institutions within The Oklahoma State System of Higher Education may acquire property interests in technology developed on the premises of or with the assistance of an institution within The Oklahoma State System of Higher Education or a property interest in the revenues derived by the sale, marketing, licensing, or other disposition of technology by an institution within The Oklahoma State System of Higher Education or by a private business entity conducting research or engaged in the development of technology on the premises of or with the assistance of an institution within The Oklahoma State System of Higher Education. The policy shall include a tiered system of ownership based on the amount of revenue generated from the new technology. The policy shall also ensure that the inventor or discoverer is compensated competitively to similarly situated institutions; and

2. Establish policies for institutions within The Oklahoma State System of Higher Education to:

a. encourage development of a product, process, or idea, regardless of whether or not the product, process, or idea is protectable under the intellectual property

1 laws of the United States or of this state, and to
2 encourage the institutions to take such actions as may
3 be appropriate in order to promote the development of
4 products, processes, or ideas having a potential for
5 the improvement or advancement of:

6 (1) medical technology,

7 (2) biotechnology,

8 (3) energy technology,

9 (4) telecommunications technology,

10 (5) chemical technology,

11 (6) industrial technology, ~~and~~

12 (7) aerospace and defense, and

13 (8) such other technologies as are deserving of the
14 resources and assistance available through
15 institutions and the faculty and students of
16 institutions within The Oklahoma State System of
17 Higher Education,

18 b. develop appropriate methods to maintain a system for
19 recording the nature of research being conducted at
20 institutions within The Oklahoma State System of
21 Higher Education and the results of research having
22 potential for protection pursuant to the intellectual
23 property laws of the United States or of this state,
24 and

1 c. develop a system to account for:

- 2 (1) expenses associated with research and development
3 conducted on the premises of or with the
4 assistance of an institution within The Oklahoma
5 State System of Higher Education,
6 (2) the financial relationships, if any, established
7 between those institutions and private business
8 entities,
9 (3) the acquisition of equity interests in private
10 business entities,
11 (4) the receipt of royalty income or other income
12 related to the sale or other disposition of
13 products, processes, or ideas by institutions or
14 private business entities with which the
15 institution has established a financial
16 arrangement,
17 (5) the gains or losses upon the sale or other
18 disposition of equity interests in private
19 business entities, and
20 (6) such other matters relating to the income and
21 expenses associated with the research,
22 development, intellectual property protection,
23 marketing, distribution, or other matters as the
24 State Regents determine to be appropriate.

B. Any policy created by the State Regents or institutions within The Oklahoma State System of Higher Education pursuant to this section shall be reviewed every seven (7) years to ensure that the policy is still competitive among comparable institutions of higher education.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 12th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives